IN THE NATIONAL COMPANY LAW TRIBUNAL,
ALLAHABAD BENCH,
PRAYAGRAJ

CP (CAA) No.03/ALD/2023 IN
CA (CAA) No.02/ALD/2022
(2nd Motion)

Under Section 230-232 of the Companies Act, 2013
In the matter of Scheme of Amalgamation between:

UTKRISHT MANPOWER PARTNERS PVT. LTD.
(CIN: U74910UP2012PTC121144)

……. **Petitioner/ Transferor Company No.1**

STARLA MEDIA PVT. LTD.
(CIN: U74300DL2008PTC182166)

……. **Non-Petitioner/ Transferor Company No.2**

WITH

ADHEESHTH HOLDING PVT. LTD.
(CIN: U67120DL2008PTC183961)

……. **Non-Petitioner/ Transferee Company**

Coram:

HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)

HON'BLE MR. ASHISH VERMA, MEMBER (TECHNICAL)

Present :

For the Petitioner Companies : Mr. Ankit Kumar Singh, PCS
For ROC : Mr. Krishna Dev Vyas, Adv. (through VC)
For O.L. Alld/ RD (NR) : Mr. Ajeet Kumar Singh, AOL

ORDER

1. This is a joint Second Motion company petition filed by the Applicant Companies, namely, **Utkrisht Manpower Partners Pvt. Ltd. (**Petitioner/ Transferor Company No.1,), **Starla Media Pvt. Ltd. (**Non-Petitioner/ Transferor Company No.2,) and **Adheeshth Holding Pvt. Ltd.** (Non-Petitioner/ Transferee Company) in terms of Rule 16 of the Companies (Compromises, Arrangements

-Sd- -Sd-

and Amalgamations) Rules, 2016 (for Brevity "Rules).

2. The petitioners companies have prayed for sanctioning of the Scheme of Arrangement in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections. The First Motion application seeking directions for dispensing with the requirement of convening of meetings of Equity Shareholders and unsecured creditors of Transferor Company No.1 vide Company Application No. CA (CAA) No.02/ALD/2023 and based on such application moved under Sections 230-232 of theCompanies Act, 2013, (for brevity, the 'Act'), necessary directions were issued on 23.03.2023. In the order dated 23.03.2023, the meetings of the Equity Shareholders and Unsecured Creditors of Transferor Company No.1 were dispensed with for the reasons mentioned in the aforesaid order. Additionally, this Tribunal directed that, since there is no Secured Creditor in the Transferor Company no.1, the requirement of convening the meeting of Secured Creditors does not arise.

3. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 23.03.2023.

4. Notices are accordingly issued in the present petition by the Petitioner Companies, within two weeks, to the following Authorities namely, (a) Central Government through Regional Director, New Delhi; (b) Registrar of Companies, Uttar Pradesh; (c) Official Liquidator, Allahabad; (d) Jurisdictional Income Tax Authority by mentioning the PAN of the Company along with a copy of this petition by speed post immediately.

5. Mr. Krishna Dev Vyas present on behalf of ROC and Sh. Ajeet Kumar Singh, AOL present on behalf of Official Liquidator, Allahabad, accept notice for the same. Let additionally notice be issued to the concerned ROC and RD (NR) and concerned Income Tax Authorities (Nodal Officer as appointed by CBDT vide its order dated 17.3.2023), as mentioned in para above.

-Sd- *-Sd-*

6. In addition to the above public notices, the notice of hearing will also be advertised in "Business Standard" in English and Hindi language, having wide circulation in Delhi NCR Edition by not less than 10 days before the next date fixed for hearing.

7. The petitioner companies shall at least 7 days before the date of hearing of the petitionfile an affidavit of notice regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given, may befiled on or before the date of hearing fixed herein, failing which it will be consideredthat there is no objection to the approval of the 'Scheme' on the part of the authoritiesand this Tribunal will proceed in the matter, subject to other conditions being satisfiedas may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

8. The next date of hearing of the petition shall be on 24th May, 2023 for consideration of the approval of the scheme as contemplated between the petitioner companies.

9. The registry shall also report before the date fixed for next hearing, as to whether any objection has been received to the proposed 'Scheme'.

-Sd-

(Ashish Verma)
Member (Technical)

-Sd-

(Praveen Gupta)
Member (Judicial)

April 11th, 2023